RESOLUTION MSC.234(82)
RECOMMENDATIONS CONCERNING TONNAGE MEASUREMENT OF
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RECOMMENDATIONS CONCERNING TONNAGE MEASUREMENT OF
OPEN-TOP CONTAINERSHIPS

THE MARITIME SAFETY COMMITTEE,

RECALLING Article 28(b) of the Convention on the International Maritime Organization concerning the functions of the Committee,

RECALLING FURTHER the relevant provis ions of the Intern ational Convention on Tonnage Measurement of Ships, 1969,

RECALLING ALSO circular TM.5/Circ.4 on Pr ovisional formula to calculate a reduced gross tonnage of open-top containerships, wher eby the Committee, being concerned with the economic disadvantages caused by the use of greater gross tonna ge in comparison with gross tonnage of conventional containe rships for the assessment of fees, agreed to recommend a reduced gross tonnage for open-top containerships based on a provisional formula,

tonnage of conventional containe rships for the assessment of fees, agreed to recommend a reduced gross tonnage for open-top containerships based on a provisional formula,

RECALLING ALSO circular TM .5/Circ.5 on Interpretations of the provisions of the International Convention on Tonnage Measuremen t of Ships, 1969, in particular section 3 entitled “Open-top containerships”,

NOTING that, by the aforementioned circular TM.5/Circ.4, Governments were invited to submit to the Organization information on open- top containerships in operation and under consideration which would enable the assessment of the final coefficients in the formula, including principal dimensions, gross tonn age underdeck and ondeck carrying capacities of containers, deadweight etc.,

HAVING RECOGNIZED that based on the provisions included in circular MSC/Circ.608/Rev.1, open-top containerships are designed and constructed to a high safety level

containers, deadweight etc.,

HAVING RECOGNIZED that based on the provisions included in circular MSC/Circ.608/Rev.1, open-top containerships are designed and constructed to a high safety level in particular. This applies to improved protection and securing of containers,

NOTING that, in view of the explicit amendment procedure of the 1969 Tonnage Measurement Convention, it may require a significant period of time for any amendment to become effective,

REALIZING the need for the establishment of the principles for the treatment and unified application of tonnage measurement of open-top containerships,

HAVING CONSIDERED, at its eighty-second session, the recommendation made by the Sub-Committee on Stability and Load Lines and on Fishing Vessels Safety, at its forty-ninth session,

1. ADOPTS the Recommendations concerni ng tonnage measurement of open-top containerships, the text of which is set out in the Annex to the present resolution;

session,

1. ADOPTS the Recommendations concerni ng tonnage measurement of open-top containerships, the text of which is set out in the Annex to the present resolution;

2. AGREES that Governments which are Cont racting Governments to the 1969 Tonnage Measurement Convention should use these Reco mmendations when applying the provisions of the Convention;

3. INVITES Governments to advise the ports and harbours authorities to apply the Recommendations when assessing fees ba sed on reduced gross tonnage for open-top containerships;

4. REVOKES circular TM.5/Circ.4 and section 3 entitled “O pen-top containerships” of circular TM.5/Circ.5.

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circular TM.5/Circ.5.

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OPEN-TOP CONTAINERSHIPS

1 In order to use a unified base for the a pplication of tonnage measurement of open-top containerships, the Administrations are recommended to accept the following.

Definition of open-top containership

2 An open-top containership , for the purpose of application of the 1969 Tonnage Measurement Convention, means a ship which is designed for the carriage of containers and which is constructed like an open “U”, with not less than 66.7% of the total cargo hatchway clear opening area in an “open-top” configuration, with a double bottom and above this, high-sided erections without hatch covers on the upper deck and without a complete deck above the

opening area in an “open-top” configuration, with a double bottom and above this, high-sided erections without hatch covers on the upper deck and without a complete deck above the moulded draught (refer to the figur e), and needs to be regarded as a ship of a novel type as referred to in regulation 1(3) of the Convention.

Interpretations of the provisions of the 1969 Tonnage Measurement Convention

3 The provisions of the 1969 Tonnage Measurem ent Convention for treatment of enclosed spaces should be applied to open-top cont ainerships subject to the following unified interpretations:

.1 Upper deck (regulation 2(1))

In a ship which is exempted by the Admi nistration from the requirements to fit weathertight hatch covers .on the uppermost deck exposed to weather and sea, as in an open-top containership, the upper d eck should be taken as that deck which would have been determined by regulation 2(1) as if such hatch covers had been fitted.

in an open-top containership, the upper d eck should be taken as that deck which would have been determined by regulation 2(1) as if such hatch covers had been fitted.

.2 Enclosed spaces (regulation 2(4))

In open-top containerships, an opening in a deck such as the absence of hatch covers should not preclude a space from being included in the enclosed space.

.3 Shelter above container stacks

In the case of open-top containerships having movable non-load-bearing covers (shelter) of light construction resting on the container-guides, the space above the hatch coamings up to the covers does not qualify as an excluded space according to regulation 2(5). For this particular design, howe ver, an exception can be made in accordance with regulation l(3). The sp ace can be excluded provided that this type of ship meets the requirements of an open-top containership without such covers.

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type of ship meets the requirements of an open-top containership without such covers.

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Reduced gross tonnage of open-top containerships

4 To reduce the disadvantages caused by the use of a greater gross tonnage in comparison with a gross tonnage of conventional containers hips for assessing fees, a reduced gross tonnage for open-top containerships, without limitation in size, based on a simplified formula is recommended as follows:

GTR = 0.9 x GT

where:

GTR = the reduced gross tonnage

GT = the gross tonnage calculated in accordance with the 1969 Tonnage Measurement Convention

Entry into the International Tonnage Certificate (1969)

5 In the International Tonnage Certificate (1969), under “Remarks”, an entry should be made for the tonnage of the open-top containership as follows:

5 In the International Tonnage Certificate (1969), under “Remarks”, an entry should be made for the tonnage of the open-top containership as follows:

“In accordance with resolution MSC.234(82), th e reduced gross tonnage which should be used for the calculation of tonnage-based fees is……”

Figure referred to in paragraph 2

Upper deck

Moulded draught (regulation 4(2))
Open from above

CC=V c

Enclosed spaces

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CC
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